



File No.: EXP202210999

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 22, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The person allegedly responsible for a Telegram channel constantly and repeatedly publishes the personal data of various radio amateurs, associating their distinctive call sign with their actual personal data.

In the case of the complainant, a screenshot was published showing his name and surname associated with his address and the people registered at that address (presumably his wife and children and an ascendant).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on October 20, 2022, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The notification, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on November 3, 2022, as recorded in the acknowledgment of receipt in the file.

No response has been received to this notification.

THIRD: On November 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 6, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

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FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: The respondent, through a Telegram channel, constantly and repeatedly publishes the personal data of various radio amateurs, associating their distinctive call sign with their actual personal data.

Telegram channels are a type of communication within the messaging application that allows you to broadcast public messages to large audiences or private messages to limited audiences.

SECOND: It is confirmed that the personal data of the complainant and his family has been made public.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data, stating the following:

"1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

The infringement of Article 6 of the GDPR is classified in Article 83.5 a) of the GDPR, which states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

Article 72.1 b) of the LOPDGDD states that "in accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall

prescribe after three years, which involve a substantial breach of the articles mentioned therein and in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing in Article 6 of Regulation (EU) 2016/679.”

III

In the present case, a complaint has been filed regarding the use of personal data in a Telegram channel by the complained party involving various amateur radio operators, associating their distinctive call sign with their actual personal data, publicizing the personal data of the complainant and their family without a legal basis justifying its processing.

These facts would constitute the processing of personal data without the consent of its owner and lacking legitimacy on the part of the complained entity justifying its processing, which is why the Spanish Data Protection Agency considers that the complained party would be violating Article 6 of the GDPR, as indicated in legal basis II, which establishes the circumstances under which the processing of personal data may be considered lawful.

IV

Article 58.2 of the GDPR provides as follows: “Each supervisory authority shall have all of the following corrective powers:

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

V

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

Therefore, it is appropriate to scale the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Article 83.2 of the GDPR states that:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, due regard shall be given to:

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a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the harm suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, particularly whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement."

In this case, intentionality and negligence of the defendant entity have been taken into account as aggravating factors, according to Article 83.2(b) of the GDPR, because the intentionality in the unauthorized processing is clear, as it has consciously and deliberately published the data of the complainant and their family, making it accessible to anyone who accesses the Telegram channel. For all these reasons, it is considered that the penalty to be imposed would be 5,000 euros for the infringement of Article 6.1 of the GDPR.

VI

Article 69 of the LOPDGDD, in relation to provisional measures and guarantees of rights, establishes the following:

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"1. During the preliminary investigation proceedings or when a procedure for the exercise of the sanctioning power has been initiated, the Spanish Data Protection Agency may, for justified reasons, agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data, and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Data Protection Agency considers that the continuation of the processing of personal data, its communication, or international transfer would cause serious harm to the right to personal data protection, it may order the data controllers or processors to block the data and cease its processing, and, in case of non-compliance with these orders, proceed to immobilize the data.

3. When a complaint has been submitted to the Spanish Data Protection Agency referring, among other issues, to the failure to timely address the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, the Spanish Data Protection Agency may at any time, even prior to the initiation of the procedure for the exercise of the sanctioning power, by means of a reasoned resolution and after hearing the data controller, order the obligation to address the requested right, continuing the procedure regarding the other issues raised in the complaint."

Therefore, in accordance with the provisions of this article, it is considered that as a consequence of the high risk that the reported facts pose, the maintenance of the publication represents for the fundamental right to data protection and the guarantees and freedoms of the affected parties, including minors, a very serious and irreparable detriment to the rights of the affected citizens, whose personal data, including their address and location, are published openly; therefore, the defendant must immediately cease such actions.

Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 5,000 € (five thousand euros).

SECOND: TO ORDER B.B.B. to immediately cease the publication of personal data of the complainant and their family, as well as the personal data of those amateur radio operators who have not given their consent, or for whom they lack legitimacy for processing, and to inform this Agency within 10 days about the measures taken.

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THIRD: NOTIFY this resolution to B.B.B.

FOURTH: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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